

摘要：

半导体研究机构 SemiAnalysis 陷入法律战。前员工指控公司强制要求将重大非公开信息（MNPI）纳入模型，并质疑 CEO 私人投资与业务混同；公司则反诉其侵占机密及诽谤。此案直指核心业务合规性，若 MNPI 指控属实，将冲击其研究独立性并引发金融法律风险。

在人工智能基础设施分析领域迅速崛起的SemiAnalysis如今深陷双向诉讼——前员工指控公司将重大非公开信息（MNPI）输入出售给金融和半导体行业客户的分析模型，并将CEO Dylan Patel的私人投资项目与公司业务混同运作，由此引发业界对这家以深度研究报告著称的机构在数据来源及利益冲突方面的合规质疑。

据旧金山高等法院2026年4月诉讼文件，前员工Wei Zhou指控SemiAnalysis在要求其将MNPI纳入客户分析模型遭其拒绝后，对其实施报复性解雇。SemiAnalysis已抢先于3月27日对Zhou提起反诉，指控其侵占商业机密、违反合同及诽谤等多项罪名，并明确否认Zhou的全部指控。Dylan Patel随后在社交媒体上发表声明，表示公司将“坚决捍卫”自身立场。

社交媒体上已有独立账号“拿出证据”，指出SemiAnalysis旗下InferenceX评级系统存在疑似利益冲突的迹象，进一步加剧了外界对其研究独立性的质疑。若MNPI指控属实，将对SemiAnalysis的商业模式构成根本性挑战。该公司付费客户中包含大量活跃于资本市场的金融机构，MNPI的使用可能引发内幕交易相关法律风险。

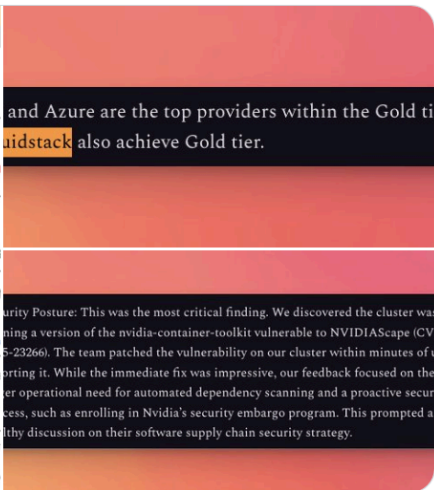
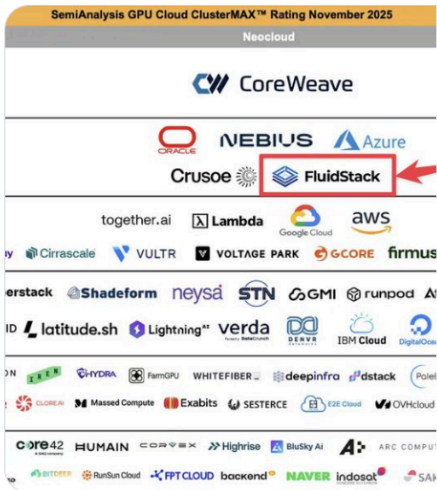


Hot Aisle
@HotAisle



Let's not forget: the “new entrant” FluidStack was awarded Gold tier (higher than AWS or Google Cloud), even with known security issues and rough edges, while dozens of solid companies were labeled “Not Recommended.”

If the grift fits, wear it.



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目前，双方均未就庭外和解表态，案件走向尚不明朗。若最终诉诸法院裁决，此案或将对半导体行业付费研究机构的数据使用规范产生示范效应。



诉讼核心：拒绝纳入MNPI，遭报复性解雇

根据案号CGC-36-635374的诉讼文件，Wei Zhou在诉状中称，其任职SemiAnalysis期间曾被要求将重大非公开信息纳入公司向金融及半导体行业客户出售的行业分析模型。Zhou以此举可能违反相关法律为由拒绝执行，随即遭到解雇，对公司系统的全部访问权限也被立即撤销。

诉状据此提出四项诉因：违反合同、违反善意诚信隐含契约、违反加州劳动法典第98.6条和第1102.5条所规定的禁止报复条款，以及违反公共政策的错误解雇。诉状未明确列出具体赔偿金额，但注明索赔金额超过35000美元。

1	ENOCH WANG (SBN 218904)	ELECTRONICALLY
2	FIFE LAW, LLP	FILED
3	300 Montgomery Street, Suite 631	Superior Court of California,
4	San Francisco, CA 94104	County of San Francisco
	Telephone: (415) 837-3101	03/30/2026
	Facsimile: (415) 837-3111	Clerk of the Court
		BY: MARVIC VIRAY
		Deputy Clerk
5	Attorneys for Plaintiff	CGC-26-635374
6	Wei Zhou	
7		
8	SUPERIOR COURT OF CALIFORNIA	
9	COUNTY OF SAN FRANCISCO	
10	UNLIMITED CIVIL	
11	WEI ZHOU,	) Case No.
12	Plaintiff,	)
13	V.	) COMPLAINT FOR:
14	SEMIANALYSIS LLC, and DOES 1 through	) 1. BREACH OF CONTRACT
15	10, inclusive,	) 2. BREACH OF IMPLIED
16	Defendants.	) COVENANT OF GOOD FAITH
17		) AND FAIR DEALING
18		) 3. RETALIATION IN VIOLATION
19		) OF LABOR CODE §§ 98.6 AND
20	Plaintiff Wei Zhou ("plaintiff") alleges as follows:	) 1102.5
21	<u>JURISDICTION AND VENUE</u>	) 4. WRONGFUL TERMINATION IN
22	1. This Court has jurisdiction over all causes of action asserted herein pursuant to	) VIOLATION OF PUBLIC POLICY
23	the California Constitution, Article VI, section 10. The amount in controversy exceeds \$35,000,	
24	exclusive of attorney's fees, interest, and costs.	
25	2. This Court has personal jurisdiction over Defendant SemiAnalysis LLC	
26	("SemiAnalysis") because it has its principal place of business in the State of California.	
27	3. Venue is appropriate in this judicial district because Defendant SemiAnalysis	
	does business in this County, and the events at issue took place in San Francisco.	
	Complaint	1

1	<u>PARTIES</u>
2	4. Plaintiff Wei Zhou ("Zhou") is a resident of San Francisco County, California.
3	5. Defendant SemiAnalysis LLC ("SemiAnalysis") is a Florida limited liability
4	company with its principal place of business in San Francisco, California. Dylan Patel is the
5	CEO of SemiAnalysis.

利益冲突疑云：CEO私人投资项目与公司资源交织

Zhou在诉状中进一步指控，上述MNPI与一个规模达5000万美元、由Dylan Patel本人主导的投资工具直接相关，且部分SemiAnalysis员工在公司工作时间内参与了该投资项目的相关工作。



Zhou还指出，公司总裁Doug O'Laughlin本应对MNPI的使用承担管控职责，但其当时正忙于为Patel的投资工具进行募资，未能履行相关责任。这一指控直指SemiAnalysis在运营层面可能存在的公私边界混同问题——一方面向付费客户出售行业研究报告，另一方面CEO同时运营一个与所涉MNPI相关的私人投资载体。

18		<u>FACTUAL ALLEGATIONS</u>	
19	8.	On or about May 28, 2025, Zhou signed an offer letter contract to work for	
20		SemiAnalysis as Head of AI Utility Research, reporting directly to CEO Dylan Patel. His	
21		compensation package included a base salary and a performance-linked bonus which formula	
22		tracked with revenue generated from Tokenomics (loosely defined as the study and analysis of	
23		the economic aspects of AI model token production).	
24	9.	Patel recruited Zhou because of Zhou's expertise and experience in Tokenomics,	
25		and there was a mutual understanding that Zhou could only be terminated for cause.	
26		SemiAnalysis did not have Tokenomics prior to Zhou being hired. Patel hired Zhou explicitly to	
27		produce this business vertical for SemiAnalysis, and to date, was the only employee to be	
		offered equity-like compensation such as revenue share. Patel is the 100% sole owner of	
		SemiAnalysis, and the performance-linked bonus offered to Zhou was in lieu of stock or stock	
		Complaint	2
1		options.	
2	10.	Zhou's work as Head of AI Utility Research is highly lucrative for SemiAnalysis	
3		and Dylan Patel personally. The Tokenomics model reports and updates generated are provided	
4		to large scale investor clients who are investing in the AI market, as well AI industry clients	
5		such as cloud developers.	

与此同时，社交媒体上已有独立账号Hot Aisle“拿出了证据”。该账号发帖指出，新进入者FluidStack在该系统中获得了“金级”（Gold tier）认证，排名高于亚马逊云服务（AWS）和谷歌云，而数十家经营稳健的公司却被标注为“不推荐”——尽管FluidStack存在已知安全问题且产品功能仍不完善。该帖子暗指评级结果存在利益输送之嫌。

反诉聚焦员工不当行为，回避MNPI核心指控

SemiAnalysis明确否认Zhou的全部指控。其抢先提起的诉讼（案号CGC-26-635328）列出了针对Zhou的七项主张：**侵占商业机密、转移资产、违反合同、违反受托责任、干扰潜在经济利益关系、干扰合同关系，以及诽谤。**

SemiAnalysis在诉状中称，Zhou因一系列严重不当行为于2026年1月被解雇，具体包括：带醉意上班、对同事发表含有另一名员工姓名的不雅性暗示评论、拒绝与特定员工合作，以及多次扰乱工作秩序。公司还指控Zhou在离职后仍持有装有公司商业机密的笔记本电脑，并向SemiAnalysis客户散布诽谤性陈述。

关于Zhou主张的数百万美元收益分成，SemiAnalysis反指其“本应更仔细地阅读合同”，并称Zhou的诉讼“是图谋勒索公司的企图”，理由是合同明确规定收益分成须以其在2026年4月1日仍在职为前提。值得关注的是，SemiAnalysis的反诉始终未正面回应Zhou关于MNPI使用的核心指控。

1		INTRODUCTION
2	1.	Wei Zhou was fired from his job at SemiAnalysis LLC (“SemiAnalysis” or the
3		“Company”) after only seven months because he demeaned coworkers, caused repeated workplace
4		disruptions, made inappropriate comments, came to work drunk, refused to work with certain
5		SemiAnalysis employees, and alienated others so that eventually the only person who could work with
6		him was CEO Dylan Patel—until Mr. Zhou attacked even Mr. Patel and refused to work with him,
7		resulting in his termination.
8	2.	Prior to his termination, Mr. Zhou indicated that he believed that he would be entitled
9		to a substantial profit share (“Bonus”) under his employment agreement if his employment ended.
10		After his employment ended Mr. Zhou’s lawyer repeated the claim that Mr. Zhou’s contracts entitled
11		him to a Bonus of millions. SemiAnalysis’ counsel had to explain that under Mr. Zhou’s contracts,
12		he was only entitled to the Bonus if his employment lasted beyond April 1, 2026. Since Mr. Zhou was
13		fired two months before that date, he was not entitled to any Bonus.
14	3.	It was only after his attorney presumably explained that Mr. Zhou should have read his
15		contract more carefully—and more than a month after he was fired—that Mr. Zhou sent SemiAnalysis
16		a “draft complaint” full of demonstrably untrue statements intended to make the Company look bad
17		and threatened to file it if SemiAnalysis did not pay him millions of dollars. In addition to a slew of
18		incorrect statements that bore no relation to any cognizable cause of action, the “draft complaint”
19		claimed for the first time ever that Mr. Zhou was fired not for his consistent unprofessional conduct,
20		but because he had refused an instruction to improperly use a third party’s confidential information in
21		preparing SemiAnalysis reports. To state the obvious, Mr. Zhou’s allegations are completely
22		fabricated in an attempt to extort the money he <i>thought</i> he was going to get out of SemiAnalysis.

Tokenomics平台归属之争：前员工主张奠基贡献

Zhou入职SemiAnalysis的核心职责是从零搭建公司的Tokenomics分析平台。其诉状称，该平台在其入职前并不存在，正是凭借其专业能力得以建立，而平台的商业成功也使Zhou成为公司内部少数享有收益分成安排的员工之一。

诉状还披露，Dylan Patel是SemiAnalysis的唯一所有人，公司不向员工提供任何股权或期权安排，收益分成因而属于公司内部较为特殊的激励机制。Zhou在本次诉状中暂未就上述收益分成单独提出赔偿请求。

公司背景：以Substack为对外展示窗口、年收入逾5000万美元

SemiAnalysis由Dylan Patel创立，目前拥有约50名员工，聚焦人工智能生态系统的深度分析，涵盖数据中心建设、供应链经济学及AI推理部署等领域。公司以Substack为对外展示窗口，主要营收来源为面向金融机构和半导体行业客户销售的季度行业报告及InferenceX等数据产品，年收入估计超过5000万美元（该数字系推算所得，存在较大误差空间）。

公司已在行业内获得广泛认可——英伟达CEO Jensen Huang在GTC 2026主题演讲中公开援引了SemiAnalysis的InferenceX测评结果。SemiAnalysis获取数据的方式包括：信息公开申请、公开航运清单、供应链及政府文件梳理，以及在获得许可后对数据中心建设工地进行无人机航拍等，公司将上述信息定义为“技术上属于公开、但并未被广泛传播”的数据——此次诉讼的核心争议，正在于这条边界究竟延伸至何处。

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